

IN THE SUPREME COURT OF INDIA
CIVIL APPELLATE JURISDICTION
Civil Appeal No. 1824 of 2025

Citation: 2025 INSC 182

Date of Pronouncement: 2025-02-21

Coram: Sanjiv Khanna (CJI), Sanjay Kumar (J)

M/s Apex Renewable Energy Ltd. ... Appellant

VERSUS

Union of India and Central Electricity Regulatory Commission ... Respondent

JUDGMENT

1. PROCEDURAL BACKGROUND & FACTS

This appeal arises from the final judgment and order passed by the High Court in respect of statutory pro

2. STATUTORY FRAMEWORK & ISSUES

The primary legal issue for determination is whether the administrative authority complied with mandatory

- Electricity Act, 2003 (Section 61, Section 79)
- Constitution of India (Article 14, Article 19(1)(g))

3. OPERATIVE RATIO DECIDENDI & HOLDING

Regulatory Certainty in Green Energy Contracts: Regulatory commissions cannot retrospectively alter es

4. FINAL ORDER & DIRECTIONS

Disposal Nature: Allowed with Directions.

Each party shall bear their own costs. Orders accordingly.

[Signed]

(Sanjiv Khanna (CJI))

(Sanjay Kumar (J))